UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER, **Plaintiff,** **v.** **MARTIAN SALES, INC.; JOPEN, LLC; JOHNSON FOODS, LLC; LP IND., LLC; CAG HOLDINGS, LLC; RMH HOLDINGS, INC.; ABC INSURANCE COMPANY and John Does 1-4,** **Defendants.**	*	**CIVIL ACTION NO. 2:24-cv-228-WBV-DPC** **THE HONORABLE WENDY B. VITTER** **MAGISTRATE DONNA PHILLIPS CURRAULT**

NOTICE OF SUBMISSION

PLEASE TAKE NOTICE that Defendant JOpen, LLC, through undersigned counsel, respectfully brings for submission a Rule 37(c)(1) Motion to Preclude Plaintiff from Relying on Certain Evidence before Honorable Donna Phillips Currault on February 18, 2026, at 10:00 a.m.

Dated this 3rd day of February, 2026.

Respectfully Submitted

By: */s/ Gwendolyn C. Payton*

Gwendolyn C. Payton *(pro hac vice)*
Hayley R. Ambler
Louisiana State Bar No. 25848

KILPATRICK TOWNSEND & STOCKTON LLP
1420 Fifth Ave., Suite 3700
Seattle, Washington 98101
Telephone: (206) 497-9600
Facsimile: (206) 299-0414
Email: hambler@ktslaw.com
Email: gpayton@ktslaw.com

Maeghan E. Whitehead *(*admitted *pro hac vice)*
KILPATRICK TOWNSEND & STOCKTON LLP
2001 Ross Avenue, Suite 4400

Dallas, Texas 75201
(214) 922-7138
(214) 279-4456
mewhitehead@ktslaw.com

COUNSEL FOR DEFENDANT

CERTIFICATE OF SERVICE

This is to certify that on the 3rd day of February, 2026, a copy of the foregoing document was filed with the Clerk of Court and served on all counsel of record via the Court's ECF System.

/s/ Gwendolyn C. Payton
Gwendolyn C. Payton